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**Tentative Ruling**

Re: **Gragston v. Deboer**  
Superior Court Case No. 23CECG04901

Hearing Date: August 4, 2026 (Dept. 502)

Motion: Application for Default Judgment

**Tentative Ruling:**

To deny without prejudice. (Code Civ. Proc., §§ 764.010, 763.020, 761.010.)

**Explanation:**

Insufficient Evidence of Intent

Under typical default circumstances, the defendant is no longer entitled to participate in the proceedings. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) Nevertheless, reflecting the general uniqueness conferred to real property, quiet title proceedings do not follow the typical path toward obtaining judgment. (*Harbour Vista, LLC v. HSBC Mortgage Services Inc.* (2011) 201 Cal.App.4th 1496, 1505.) Consequently, “notwithstanding a defendant's default in a quiet title action, the plaintiff is not automatically entitled to judgment in its favor but must prove its case in an evidentiary hearing with live witnesses and any other admissible evidence ....” (*Nickell v. Matlock* (2012) 206 Cal.App.4th 934, 947; see also Code Civ. Proc., § 764.010 [“[t]he court shall not enter judgment by default ....”].) Furthermore, defaulted defendants are entitled to participate in the quiet title proceedings and present competing evidence. (*Nickell v. Matlock, supra*, 206 Cal.App.4th at pp. 944, 947; *Harbour Vista, LLC v. HSBC Mortg. Services Inc., supra*, 201 Cal.App.4th at p. 1508 [trial court erred when it entered default quiet title judgment without allowing competing evidence from the defendant.]

“When, through fraud or a mutual mistake of the parties, or a mistake of one party, which the other at the time knew or suspected, a written contract does not truly express the intention of the parties, it may be revised on the application of a party aggrieved, so as to express that intention, so far as it can be done without prejudice to rights acquired by third persons, in good faith and for value.” (Civ. Code, § 3399.) Accordingly, a deed may be reformed when, through fraud or mistake, a deed does express the intent of the parties. A complaint for reformation must allege “[t]he real agreement; the agreement reduced to writing; the mistake, i. e., the defect in the writing and generally how it came about.” (*Landis v. Superior Court* (1965) 232 Cal.App.2d 548, 555.) “In order to reform a written instrument, the party seeking relief must prove the true intent by clear and convincing evidence.” (*Shupe v. Nelson* (1967) 254 Cal.App.2d 693, 700.)

Here, plaintiffs submit declarations from Deirdra Williams, Marveda DeBoer's purported granddaughter, and Chelsea Aleston, formerly, Chelsea Barkley, in support of Ms. DeBoer's intent to convey the parcel legally described as:

Lot 30 of Tract No. 1094, Kavanaugh Vista, in the City of Fresno, County of Fresno, State of California, according to the map recorded in Book 14 Page 54 of Plats, Fresno County Records.

EXCEPTING THEREFROM the north 100 feet thereof.

(Williams Decl., Exh. A ("Parcel 2").)

Ms. Aleston's written testimony does not provide any information pertaining to Ms. DeBoer's intent. Although a preliminary title report purportedly related to the February 22, 2002 transaction is attached to Ms. Aleston's declaration, the title report does not evidence what Ms. Deboer intended to convey. The letter attached to Ms. Aleston's declaration from Fidelity National Title, dated May 18, 2021, merely recites the facts alleged in the complaint and indicates that the claim falls within their insuring provisions. (Aleston Decl., Exh. 2.)

Similarly, despite disavowing her interest in the property, Ms. Williams' declarations<sup>1</sup> provide no evidence relating to Ms. Deboer's intent at the time she sold the property in February 22, 2002.

Therefore, plaintiffs have not shown that Ms. Deboer intended to convey Parcel 2 in the February 22, 2002 transaction by clear and convincing evidence.

#### No Proof of Posting Notice at the Property

When service has been made by publication in a quiet title action, the plaintiff must post a copy of the summons and complaint at a conspicuous place on the subject property. (Code Civ. Proc., § 763.020.) Plaintiff fails to file a proof of service to prove compliance with this requirement.

#### No Lis Pendens

Code of Civil Procedure section 761.010, subdivision (b) provides that immediately upon commencement of a quiet title action, plaintiff "shall file" a notice of pendency of action in the county recorder's office. Plaintiff submits no evidence to show compliance with this requirement.

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<sup>1</sup> The court takes judicial notice of its own docket and acknowledges that Ms. Williams has supplied two different declarations relating to this action, one in support of this application and one in support of the complaint.

### Errors in Proposed Judgment

The proposed judgment fails to include the unknown defendants, the common and legal description of the subject property, and the date as of which the determination is sought.

The court further notes that it appears that plaintiffs are seeking to quiet title on the basis of reformation of deed as evidenced by the cause of action for declaratory relief and specific allegations pertaining to mutual mistake in the complaint. However, the proposed judgment is silent as to that relief.

Accordingly, the application for default judgment is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: img on 7-31-26  
(Judge's initials) (Date)